

CV-25-007838 ALVARAZ, CRISTAL vs DIAMOND TRUCK SALES – a) Plaintiff’s Motion to Compel Defendant Diamond Truck Sales’s Initial Responses to Form Interrogatories - Employment, Set One – GRANTED, and unopposed. b) Plaintiff’s Motion to Compel Defendant Diamond Truck Sale’s Initial Responses to Special Interrogatories, Set One – GRANTED, and unopposed. c) Plaintiff’s Motion to Compel Defendant Diamond Truck Sale’s Initial Responses to Requests for Production, Set One – GRANTED, and unopposed.

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: a) The Court finds that Defendant has failed to respond to the subject discovery entirely and objections have been waived. (Code Civ. Proc. § 2030.290(a).) Therefore, Plaintiff is entitled to an order compelling Defendant to provide answers, without objection, to the subject discovery within 14 days. (Code Civ. Proc. § 2030.290(b).) The Court further finds that Plaintiff is entitled to an award of monetary sanctions in connection with this motion. (Code Civ. Proc. §§ 2030.290(c), 2023.010, 2030.030 et seq.) Therefore, monetary sanctions in the amount of \$410 are awarded against Defendant Diamond Truck Sales and its counsel, Gulomjon Azimov, payable to Plaintiff’s counsel. Plaintiff shall submit a revised order consistent with the Court’s ruling herein. b) The Court finds that Defendant has failed to respond to the subject discovery entirely and objections have been waived. (Code Civ. Proc. § 2030.290(a).) Therefore, Plaintiff is entitled to an order compelling Defendant to provide answers, without objection, to the subject discovery within 14 days. (Code Civ. Proc. § 2030.290(b).) The Court further finds that Plaintiff is entitled to an award of monetary sanctions in connection with this motion. (Code Civ. Proc. §§ 2030.290(c), 2023.010, 2030.030 et seq.) Therefore, monetary sanctions in the amount of \$410 are awarded against Defendant Diamond Truck Sales and its counsel, Gulomjon Azimov, payable to Plaintiff’s counsel. Plaintiff shall submit a revised order consistent with the Court’s ruling herein. c) The Court finds that Defendant has failed to respond to the subject discovery entirely and objections have been waived. (Code Civ. Proc. § 2031.300(a).) Therefore, Plaintiff is entitled to an order compelling Defendant to provide answers, without objection, to the subject discovery within 14 days. (Code Civ. Proc. § 2031.300(b).) The Court further finds that Plaintiff is entitled to an award of monetary sanctions in connection with this motion. (Code Civ. Proc. §§ 2030.290(c), 2023.010, 2030.030 et seq.) Therefore, monetary sanctions in the amount of \$410 are awarded against Defendant Diamond Truck Sales and its counsel, Gulomjon Azimov in this regard, payable to Plaintiff’s counsel. Lastly, the Court finds that Plaintiff is also entitled to the mandatory sanction award provided for in Code Civ. Proc. § 2023.050 in this instance. Therefore, an additional monetary sanction in the amount of \$1,000 is awarded against Defendant Diamond Truck Sales and its counsel, Gulomjon Azimov, payable to Plaintiff’s counsel. Plaintiff shall submit a revised order consistent with the Court’s ruling herein. The following are the tentative rulings for cases calendared before Judge David Hood in Department 24:

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

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Plaintiff shall submit a revised order consistent with the Court's ruling herein.

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